

Before the
FEDERAL MARITIME COMMISSION

Docket No. 2010 (F)

Simple Forwarding, Inc.

v.

China United Lines Ltd. *aka* CULines and Norton Lilly International

**COMPLAINANT’S COMPLIANCE WITH THE PRESIDING OFFICER’S ORDER
REQUESTING ADDITIONAL INFORMATION**

Complainant Simple Forwarding Inc., by and through it’s Representative, submits the requested documents in connection with the above-referenced Order served on November 14, 2024 by the Presiding Officer in this matter. This Order references material Complainant has previously requested to be stricken; an issue on which no ruling has been made; as well as moot filings. While we believe this raises significant concerns regarding the fairness and procedural integrity of the proceedings, we will reserve any further argument on this issue for appropriate future proceedings.

The documents are presented in the below order to provide a clear and logical narrative of the events and to assist the Presiding Officer in reviewing the evidence:

1. Establishing Standing and Relationships

- Statements from the CEOs of Simple Forwarding and (what is now called) Unifelix International Limited, the primary agent, affirming Simple Forwarding’s authority and responsibility.

- Bill of Lading from the agent in China, designating Simple Forwarding as the Consignee.
- Simple Forwarding emails regarding the booking of the container with the agent in China.
- Ocean freight bill from the agent for the container.
- Proof of Simple Forwarding payment for the ocean freight bill.

2. Arrival Notice and Custom's Billing Documentation

- Arrival notice for the ocean freight container.
- Payment confirmation by Simple Forwarding of a line item on the arrival notice.
- Invoice from the customs broker to Simple Forwarding.
- Proof of payment by Simple Forwarding for the customs broker's invoice.

3. Trucking Management and Operational Challenges

- Email sent from Simple Forwarding to the trucking broker with the delivery order for container pickup at the port.
- The delivery order itself.
- Emails between broker and Simple Forwarding detailing trouble returning the container to the port.
- Trucking invoices and slips from the port.

4. Carrier Restrictions and Dispute Emails

- Screenshots of terminal restrictions on dates the container could not be returned.

- Emails between Simple Forwarding and Norton Lilly/CULines disputing the per diem charges.

5. Financial Impact

- Invoice for per diem charges assessed by the carrier.
- Email from TQL to Simple Forwarding's Representative, providing proof of payment and confirmation that Simple Forwarding submitted payment.
- The proof of payment.

Additionally, Complainant would like to clarify a key aspect of their operations, which may assist the Commission in understanding the context of the submitted evidence. As an NVOCC, Complainant often facilitates inland trucking arrangements for their customers. To ensure seamless logistics and compliance with all applicable laws and regulations, Complainant often employs a third-party mechanism (InXpress) that is owned/managed by them to facilitate and manage their trucking bookings. Because this mechanism is managed by the Complainant, it is Simple Forwarding (sometimes referred to with and by the CEO Abe Orgel's name as well) that remains the party billed for these services, maintaining ultimate responsibility for the transactions.

These documents are submitted in compliance with the Presiding Officer's Order and are intended to support the ongoing proceedings. In the interest of respecting the Commission and these proceedings, and to bring this matter to a close, we trust this will fulfill the necessary requirements.

I, Sara Dandan, have been admitted to general practice before the Federal Maritime Commission. I respectfully submit this motion on behalf of Complainant Simple Forwarding Inc.

Sara Dandan

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature:  _____

Date: 01/12/2025

CERTIFICATE OF SERVICE

I certify that on January 12, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

Mike Ausmus

Senior Manager Liner Services, Norton Lilly International

Email: mausmus@nortonlilly.com

Phone: 251-219-3310

China United Lines Ltd aka CULines Legal Team

Email: legal@culines.com

James Wu (Wu Jianhua)

Deputy General Manager, China United Lines Ltd aka CULines

Email: jameswu@culines.com

Phone: +86-139-1896-5061

Ashley Xu

Legal Specialist, China United Lines Ltd aka CULines

Email: ashleyxu@culines.com

Sara Dandan


